Nexus Technologies Inc. - Standard Enterprise Master Service Agreement

Nexus Technologies Inc. - Standard Enterprise Master Service Agreement (MSA)

SECTION 1: PROVISION OF SERVICES AND SLA COMMITMENTS

Nexus Enterprise Technologies Inc. ('Provider') grants Customer a non-exclusive, non-transferable subscription right to access and use the Nexus Cloud Platform. Provider commits to delivering a Service Level Agreement (SLA) uptime of ninety-nine and nine-tenths percent (99.9%) measured on a monthly calendar basis, excluding scheduled maintenance windows. In the event uptime falls below 99.9%, Customer is entitled to proportionate service fee credits.

SECTION 2: INTELLECTUAL PROPERTY RIGHTS & CUSTOMER DATA

Customer retains all right, title, and ownership interest in Customer Data uploaded to the Platform. Provider retains all intellectual property rights in the Platform, including software code, API endpoints, machine learning models, and documentation. Provider shall not use Customer Data to train foundation models without express written authorization.

SECTION 3: MUTUAL INDEMNIFICATION

Provider agrees to defend, indemnify, and hold harmless Customer against any third-party claims alleging that Customer's authorized use of the Platform infringes any valid patent, copyright, or trademark. Customer agrees to indemnify Provider against claims arising from unauthorized data uploaded in breach of applicable laws.

SECTION 4: LIMITATION OF LIABILITY AND GOVERNING LAW

Neither party shall be liable for indirect, incidental, punitive, or consequential damages. Each party's maximum aggregate liability arising under this Agreement shall be capped at the total subscription fees paid by Customer in the twelve (12) months preceding the incident. This Agreement is governed by the laws of the State of Delaware, with dispute resolution via binding AAA arbitration in Wilmington, Delaware.